

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF
SRI LANKA**

*In the matter of an Application for
Orders in the nature of Writs of
Certiorari, Prohibition and Mandamus
under Article 140 of the Constitution of
the Democratic Socialist Republic of Sri
Lanka.*

Warakamure Gedara Ahamed
Mohamed Mazeen,
No. 15/2, (8A), Kurundigaha Ela,
Akurana.

PETITIONER

CA (Writ) App. No. 151/2021

Vs.

1. Ms. A.H.M. Indika Kumari Abesinghe,
Divisional Secretary,
Divisional Secretary's Office,
Akurana.
- 1A. Dilini Ruwandika Kumari Hennayaka,
Divisional Secretary,
Divisional Secretary's Office,
Akurana.
2. Hon. Attorney General,
Attorney General's Department,
Colombo 12.

RESPONDENTS

Before: Dr. D. F. H. Gunawardhana, J.

Counsel:

Murshid Maharoof with S. Ahamed and Ishfar Uwais instructed by A.M. Jiffry for the
Petitioner.

Shemanthi Dunuwille, S.C. for the Respondents.

Argued on: 29.04.2026

Delivered on: 26.06.2026

Dr. D. F. H. Gunawardhana, J.

Judgement

Introduction

The Petitioner in this Application seeks to challenge the Notice to Quit issued by the 1st Respondent under the State Lands (Recovery of Possession) Act, and the proceedings instituted in the Magistrate's Court to eject the Petitioner from the land in question in respect of which the said Notice to Quit is sent marked as **P13** annexed to the Petition was issued.

After formally supporting the matter, the Court issued formal notice and thereafter, the Respondents have filed their respective Objections by which they have sought the dismissal of this Application relying upon several documents which includes **R1**, which is the same document marked as **P16** annexed to the Petition and relied upon by the Petitioner himself. In addition to that, two more documents have been relied upon by the Respondents.

However, after filing Counter Affidavits, the matter was argued before me on 29.04.2026, and the following arguments were advanced by the counsel; hence, this judgement.

Arguments

The first contention advanced by Mr. Maharoof, the Counsel for the Petitioner is that the disputed land is claimed by the 1st Respondent as well as the Petitioner, and the 1st Respondent is occupying the office building of the adjacent land of the Petitioner; therefore, he cannot take a decision under the State Lands (Recovery of Possession) Act and issue a notice on the Petitioner, which amounts to judging his own cause; thus, the 1st Respondent has violated the rules of natural justice.

The second contention advanced by Mr. Maharooof is that the 1st Respondent, if at all, should have established his title to the Lot A depicted in Plan **P16** by a properly constituted action in the District Court.

On the other, Ms. Dunuwille, S.C., the Counsel for the Respondents argues that the 1st Respondent is the competent authority, and therefore, the Petitioner cannot dictate terms to him on what to do and what not to do as he is under a duty to issue notice and empowered take actions under the State Lands (Recovery of Possession) Act as the Petitioner has encroached upon a portion of the land belonging to the State.

Secondly, she contends that although the Petitioner is challenging **P16**, he is not entitled to challenge it by virtue of the provisions of Section 83 of the Evidence Ordinance, as there is a presumption attached to the plan prepared by the survey general. Therefore, without directly attacking it, he challenges the same in this action.

Thirdly, it is her contention that the Divisional Secretary has formed its opinion based on **P16**, which is a plan prepared after **P15**; therefore, the decision reflected in **P13** is rational because he had formed his opinion on a recent plan prepared by the survey general.

The Petitioner's position

The Petitioner claims that he became the owner of a land, which he claims is in extent of 6.23 Perches, situated in the heart of the town of Akurana, by virtue of the Transfer Deed bearing No. 42704 marked as **P1**, the Deed of Gift marked as **P2**, and another deed bearing No. 4952 marked as **P3**. The Petitioner further claims that he submitted an application for a development permit along with a building plan to the 'Akurana Pradeshiya Sabha', and the same had been approved, which are marked as **P4** and **P5** respectively.

Thereafter, the Petitioner has constructed a three-storied shopping complex on the said land, and the photographs thereof are annexed to the Petition and marked as **P6(a)** and **P6(b)**. The Petitioner asserts that part of the Petitioner's land, along with several other allotments of land belonging to third parties, had been acquired by the Government as far back as 1983. The land so acquired is depicted in the survey plan prepared by Mr. Abeywardhana, Survey Superintendent, which is marked as **P7**, and the Gazette Notification relating to the acquisition is marked as **P7(a)**.

Accordingly, following the acquisition, there had been a claim inquiry, as the Acquisition Officer could not settle the title dispute. Consequently, the matter had been referred to the District Court of Kandy in case No. LA/14781; subsequently, the Plaint and Caption filed in the said case are marked as **P8** and **P9** respectively. The Petitioner claims that, after the judgment was delivered, as reflected in **P10** annexed to the Petition, he became entitled to compensation.

Thereafter, during the year 2019, the 1st Respondent, acting in his capacity as the Divisional Secretary, issued a letter in respect of the disputed portion of land measuring 1.4 perches under the Recovery of Possession of State Lands Act; the said letter dated 26.06.2019 is marked as **P11**. Thereafter, the Petitioner replied to the said letter through his Attorney-at-Law by way of **P12**. Subsequently, the 1st Respondent instituted proceedings in the Magistrate's Court, which are reflected in **P14**.

The Petitioner claims that he, having re-surveyed the land claimed by the 1st Respondent, obtained a plan and a superimposition thereof on the Survey Superintendent Mr. Abeywardhana's plan marked as **P7**; the said superimposition is depicted in the plan marked as **P15**. Further, the alleged encroached portion of land is indicated therein as Lot A. Therefore, in the present case, the Petitioner challenges the Notice to Quit marked as **P13**.

The Respondents' Objections

The Respondents have filed their Statement of Objections, denying the correctness of the title plan and the other plans relied upon by the Petitioner. Further, the Respondents state that if there is any defence to be taken, the same should be taken up in the manner stated in the case of *Udagedara Waththe Anusha Kumari Nikaathagoda v. Divisional Secretary of Lunuwatta*¹. In addition to that, it is the position of the Respondents that the title of the Respondents cannot be denied by the Petitioner.

The Respondents have marked the document **R1**, which is the same as **P16**, and according to which, it is the position of the Respondents that the said plan is conclusive proof of the fact that the Petitioner is in unlawful possession of the portion of land identified as 'A'; therefore, the 1st Respondent has to take a decision on that, and has taken a decision in terms of Section 3 to give the Petitioner notice. Thus, the Petitioner has not made out a case, and as such, the Respondents have sought the dismissal of the Application.

Undisputed facts

It is common ground that once there had been an acquisition in 1983 in respect of three plots of land belonging to private parties including the Petitioner, and part of that land so acquired was given to the Divisional Secretary to erect his office building where now he is having his office building. However, the Petitioner claims that his land which he is possessing and became entitled to by virtue of Deeds **P1** to **P3** lying to the eastern boundary of the Divisional Secretariat's land, is a separate land. The Petitioner also claims that based on his ownership and possession of the said land, he has made an application to the Pradeshiya Sabha of Akurana for a development permit,

¹ CA (WRT) Application No. 293/2017 (CA Minute 18.11.2019).

which was approved. Accordingly, he has erected a three-storey building thereon and having a shopping complex; the Assessment Numbers of several shops are also mentioned.

Dispute

However, a dispute had arisen when the 1st Respondent formed the view that a part of the 1st Respondent's land vested in the 1st Respondent where his office is situated had been annexed to the land claimed by the Petitioner based on **P1** to **P3**.

Thereafter, it appears on the record that the 1st Respondent has caused a plan to be prepared by the Survey Superintendent of the area. The said plan is marked as **P16** annexed to the Petition by the Petitioner himself. According to **P16**, the parcel of land identified as 'A' which lies between the parcel of land claimed by the Petitioner where the Petitioner has erected the three-storey building of the shopping complex and the land that belongs to the 1st Respondent Office. The 1st Respondent's position is that the portion of land identified as 'A' in **P16** is now annexed to the Petitioner's land and possessed by the Petitioner exclusively, which is a state land.

Therefore, what the 1st Respondent has done is, without going to a District Court in a formal vindicatory action, has decided to take an administrative action by issuing **P13**, the notice to quit, on the basis that he being the competent authority in respect of the State land vested in the Divisional Secretary, he is empowered to recover the possession thereof. Then only the whole legal dispute has arisen; however, responding to the said notice to quit, the Petitioner has written to him by and through an Attorney-at-Law marked as **P12**.

Nevertheless, since the Petitioner failed to hand over the possession of the disputed area marked as 'A' depicted in **P16**, the 1st Respondent had instituted an application in the Magistrate's Court to eject the Petitioner; therefore, it appears, as contended on behalf of the Petitioner that the dispute

is a land dispute between two adjacent landowners, therefore, this appears to be an ideal case for the District Court to decide on the matter. In such event, if the Divisional Secretary is of the view that the land belongs to the State is now annexed to the Petitioner's land surreptitiously or forcibly, the Divisional Secretary should have filed an action in the District Court without triggering the provisions of the State Lands (Recovery of Possession) Act, No. 7 of 1979 (as amended). However, instead of doing so, the 1st Respondent has taken the steps that have been provided for by the State Lands (Recovery of Possession) Act, by which a competent authority is empowered to do.

Therefore, in this case, the main question that should be decided is whether the 1st Respondent should have instituted a civil action in the District Court to recover the lost possession of the land in dispute, or when the Petitioner received **P13** without making an application under Article 140 of the Constitution invoking the jurisdiction of this Court to quash the quit notice and the proceedings in the Magistrate's Court by this case, he should have immediately gone to the District Court to vindicate the portion of land he is in possession.

Violation of rules of Natural Justice

The 1st Respondent had taken the decision to issue the quit notice on the assumption that the small portion of land Lot A is part of the larger land depicted in **P16** prepared by the Survey General Superintendent, is State land as identified as part of the land belonging to the State as a part of the acquired portion of land. However, that position is denied by the Petitioner since it has been in the possession of the Petitioner from the time he had become the owner, and it may have been from the time of his predecessors-in-title as well. However, it is a disputed fact.

Therefore, when such a fact is in issue, the question arises as to whether the 1st Respondent can take a decision in respect of such a disputed fact since the 1st Respondent himself is a party to such

a disputed fact and who raises the dispute, where, if such a decision is taken, will amount to judging one's own cause. Thus, it is a clear case of the violation of one part of the rules of natural justice, which is identified in law as *audi alteram partem*.

As such, the allegation made by the Petitioner on the basis that the rules of natural justice are violated when the 1st Respondent had taken the decision to issue the quit notice marked as **P13** based on **P16** is a good ground to challenge such a decision taken by an administrative authority who takes decisions affecting the rights of some citizens, namely, the Petitioner's rights, on a disputed fact where such a disputed fact is raised by such a party who is empowered to take decisions in terms of the law.

Therefore, it is my view that in such a scenario, a party opposing such a party who raises such a fact in issue cannot judge his own cause; thus, in that case, the question arises whether the 1st Respondent had acted in violation of the rules of natural justice, which in this instant Application, it is my view that he has.

When the acquisition had taken place in 1983, there had been a master plan prepared by the Survey General; the said plan is marked as **P7**, and such master plan indicates as to how the acquisition took place in respect of the respective lands, including the parcel of land now vested in the Divisional Secretary, whose possession is held by the 1st Respondent.

However, nowhere in **P16** has it indicated that such a master plan has been superimposed by the Survey Superintendent. Therefore, a question arises as to whether the land claimed by the 1st Respondent, as the Divisional Secretary, is in fact a part of the land vested in the 1st Respondent.

It has been constantly held by the Supreme Court of this country from time-to-time, that competent authorities have to decide that such land belongs to a statutory body corporate or such State agency

is a concluded opinion as far as the law is concerned. Therefore, when there is such an opinion formed by such an authority against a person against whom such quit notice is issued, should not issue such quit notice where he himself is a party to such issue because when he, as the competent authority himself claims such parcel of land belongs to the State where the other person against whom such quit notice is issued also disputes such fact on the basis that the parcel of land in suit belongs to such person.

According to State Lands (Recovery of Possession) Act, No. 7 of 1979 (as amended), as far as lands situated in an area of a divisional secretariat, such divisional secretary is concerned the competent authority who is empowered by the Act itself to issue quit notices to eject those who are in unlawful occupation. Once such a competent authority forms the opinion to issue such quit notice, it should issue such quit notice only on the understanding and having taken a decision seriously according to law because if a party against whom such quit notice is issued does not comply with such quit notice, the competent authority is also empowered to file an application in the Magistrate's Court to eject such a person.

However, such person is not entitled to challenge such quit notice on the basis that the competent authority, before issuing the quit notice, had formed the opinion without any proper basis. Therefore, such competent authority before forming such opinion or view that such land belongs to the State, must surely ascertain that it belongs to the State.²

² *Senanayake v. Damunupola* [1982] 2 Sri L.R. 621.

Conclusion

For the reasons adumbrated above, I grant relief as prayed for in prayer *(b)* of the Petition.

JUDGE OF THE COURT OF APPEAL